

Place: Whanganui
Present: L R Harvey, Judge
 I Brownlie and M O'Malley, Clerks of the Court
 C E Green, Deputy Registrar
 K Davidson, T Teki and T Kingi, Court Assistants
Date: 22 February 2005

Panui No: 36 **Application No:** A20040006883

Subject: Tuka and Hine-Puororangi Kumeroa Whānau Trust and Kaitangata 8A and others - Transfer of Shares and part Termination of Trust
Legislation: Sections 241 and 164, Te Ture Whenua Māori Act 1993
Present: Lorraine Kumeroa

Details of the Applicant are as follows:

<u>Applicants</u>	<u>Address</u>
Sharmaine S A Te Amo	232 Levers Road, Matua, Tauranga
Martin Kelvin Kumeroa	947 River Road, RD 6, Parikino, Whanganui

Mrs Tracey Kingi, for Deputy Registrar:

Name of Trust:	Tuka and Hine-Puororangi Kumeroa
Type of Trust:	Whānau Trust
Original Trustees:	Constituted at 47 Aotea MB 29 dated 6 April 1995 Jennifer Jane Bartlett
Current Trustees:	103 Aotea MB 217-246 dated 6 June 2000 Jennifer Jane Bartlett and Sharmaine Te Amo
Trust Order:	119 Aotea 267-270 dated 2 September 2002 Varying Terms of Trust
Summary of Changes to Trust:	Constituted at 47 Aotea MB 29 dated 6 April 1995 Partial Termination of Trust (Martin Kumeroa's shares removed from Trust) 103 Aotea MB 217-246 dated 6 June 2000 Additional Trustee appointed at 103 Aotea MB 217-246 dated 6 June 2000 Trust varied at 103 Aotea MB 217-246 dated 6 June 2000 Further interests added at 103 Aotea MB 217-246 dated 6 June 2000 Further interests added at 106 Aotea MB 88-89 dated 7 July 2001 Partial Termination of Trust (Stewart Kumeroa's shares removed from Trust) 119 Aotea MB 267-

	270 dated 2 September 2002 Trust varied at 119 Aotea MB 267-270 dated 2 September 2002
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This application has been lodged to partially terminate the Tuka and Hine-Puororangi Kumeroa Whānau Trust created at 47 Aotea MB 29 dated 6 April 1995 to which further interests were added at 103 Aotea MB 214-246 dated 6 June 2000. Sharmaine Te Amo wishes to extract the shares she contributed to the trust in Kaitangata 5E, Kaitangata 8A, Omaru 2B2 & 2B5 and Whakahuruawaka A2 only by way of gift to Martin Kelvin Kumeroa. These shares came from Hinepuororangi Kumeroa who is Sharmaine and Martin's mother. Hinepuororangi owned these shares solely and they were divided equally amongst her seven children.

The trustees have been informed of the application.

Sharmaine Te Amo has made application to the Court to transfer her shares to her brother Martin Kelvin Kumeroa as follows:

Aotea District

Donor:	Sharmaine S A Te Amo 232 Levers Road Matua Tauranga
Donee:	Martin Kelvin Kumeroa 947 River Road RD 6 Parikino Whanganui

Aotea District

<u>Blocks</u>	<u>Shares Owned</u>	<u>Shares being transferred</u>	<u>Value of shares being transferred</u>	<u>As at</u>
Kaitangata 8A	.1429	.1429	6287.60	01/09/96
Kaitangata 5E	.1127	.1127	13636.70	01/09/96
Omaru 2B2 & 2B5	.0893	.0893	26.26	01/09/96
Whakahuruawaka A2	.6488	.6488	289.38	01/09/02

Total value of gift to Martin Kelvin Kumeroa is \$20,239.94.

Orders are sought partially terminating the Tuka and Hine-Puororangi Kumeroa Whānau Trust and vesting the interests above in the donee.

Court: Signed before the Deputy Registrar, J R Furness, at Tauranga, so that's fine as well.

The Court makes orders pursuant to Te Ture Whenua Māori Act 1993:

- (a) section 241 partially terminating the Tuka and Hine-Puororangi Kumeroa Whānau Trust by removing the above shares in the above Māori Land blocks contributed to the trust by Sharmaine Te Amo;**
- (b) section 158 dispensing with the need to file a special valuation; and**
- (c) section 164 vesting the above shares in the above Māori land blocks owned by Sharmaine Te Amo in Martin Kelvin Kumeroa by way of gift.**

Copy of minute to Applicant, trustees and interested parties.

L R Harvey
JUDGE